

MASTER SERVICES AGREEMENT

Contract ID (internal): CTR-0003 **Contract Name:** Orion Logistics — Freight Services MSA

1. Parties

This Master Services Agreement (“Agreement”) is between **Nimbus Retail Co.** (“Shipper”) and **Orion Logistics Partners, Inc.** (“Carrier”).

2. Term

Effective Date: January 1, 2024 **Initial Term:** Thirty-six (36) months, ending **December 31, 2026**.

3. Renewal

This Agreement shall **not automatically renew**. The Parties may extend the Agreement by mutual written agreement prior to expiration. Written notice of intent to negotiate an extension must be delivered no later than **ninety (90) days** prior to the end of the then-current term.

4. Fees and Payment Terms

- **Total Contract Value Cap:** USD 2,400,000 across the Initial Term.
- **Payment Terms:** Net **45** days from the date of a valid invoice, subject to no-dispute conditions in Exhibit B.
- **Currency:** USD.
- **Fuel Surcharge:** Indexed quarterly to the U.S. EIA national diesel average.

5. Scope

Carrier shall provide LTL, FTL, and last-mile delivery services on lanes listed in Exhibit A. Shipper is not committed to any minimum volume; Carrier is not the exclusive provider.

6. Service Level

- **On-Time Delivery:** 95% monthly target across all lanes.
- **Claims Resolution:** Within 30 days of Shipper submission.
- **Remedies:** Rate credits as specified in Exhibit C for sustained shortfalls.

7. Insurance and Risk

Carrier shall maintain cargo insurance of not less than USD 1,000,000 per occurrence and shall name Customer as an additional insured.

8. Termination

Either Party may terminate for material breach upon thirty (30) days written notice and failure to cure. Neither Party may terminate for convenience during the Initial Term.

9. Governing Law

State of New York.

Signatures

For Nimbus Retail Co.: Aditi Shah, VP Supply Chain For Orion Logistics Partners, Inc.: Authorized Signatory